

himself, denying the title of his companion, or refusing to permit him to enter.' [Citation.] 'Whether there has been an ouster is a legal question.' [Citation.]" (*Hacienda Ranch Homes, supra*, 198 Cal.App.4th 1122, 1128 (emphasis added); *Zaslow v. Kroenert* (1946) 29 Cal.2d 541, 548 (accord).)

Here Beltran's evidence shows she and Martinez purchase the property as joint tenants in January 2018. (Beltran dec. ¶5.) Martinez paid \$10,000 towards the down payment and assisted Beltran in qualifying for a loan. (Beltran dec. ¶6.) In February 2018, the parties ended their relationship and since then Beltran has solely and exclusively possessed and occupied the property. (Beltran dec. ¶7.) Since February 2018, Beltran has paid all mortgage payments, taxes payments and all capital improvements on the property. (Beltran dec. ¶¶10-14.) This evidence shows that there is at least a triable issue on items 1, 4 and 5 for adverse possession.

As to hostile use and notice, Beltran declares that since February 2018 she has excluded Martinez from the property and that he never sought to occupy, use or exercise possessory rights over the property. (Beltran dec. ¶8.) She also declares that in June 2020, Martinez came to the property in search of his tools. He requested permission to enter the home and Beltran refused to allow him to enter. Martinez did not attempt to enter the property and did not contest Beltran's possession or control of the property. (Beltran dec. ¶8.1.)

Here, there is a triable issue as to whether Beltran denied Martinez access to the property in June 2020 (more than five years before this complaint was filed). Refusing to permit Martinez to enter the property is sufficient to show ouster, which raises a triable issue as to items 2 and 3 for adverse possession.

Therefore, the Court finds that there is a triable issue of material fact as to adverse possession and denies Martinez's motion.

**6. 9:00 AM CASE NUMBER: C25-03533**  
**CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA**  
**HEARING ON DEMURRER TO: COMPLAINT**  
**FILED BY: BIOCARE MEDICAL LLC**  
**\*TENTATIVE RULING:\***

As the Court was informed the parties have settled, this matter is taken off calendar.

**7. 9:00 AM CASE NUMBER: C25-03533**  
**CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA**  
**\*HEARING ON MOTION IN RE: STRIKE**  
**FILED BY: BIOCARE MEDICAL LLC**  
**\*TENTATIVE RULING:\***

As the Court was informed the parties have settled, this matter is taken off calendar.